

Franciscus Dylan Rosario,
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Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE REPLY DECL MISCONDUCT
CUMULATIVE RPC 3 3 3 4**

(CCP § 1005; CRC 3.1110)

**Dept.: 610
Date: June 24, 2026**

**PLAINTIFF'S NOTICE OF REPLY DECLARATION MISCONDUCT
AS CUMULATIVE RPC 3.3(A)(1) AND 3.4(B) RECORD**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

**I. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING
LINE**

By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
this Court continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department
302, and directed: "All parties immediately to provide courtesy copies of their filings per SF Local

1 Rule 2.7B with a cover letter reflecting the new hearing date.” Following the parties’ stipulation,
2 the Court further ordered all then-pending Department 302 matters consolidated for argument on
3 the June 24, 2026 line. Plaintiff Dylan Franciscus Rosario tenders this Notice in conformity with
4 that order, as the trial-court analog of Cal. Rules of Court rule 3.1308 and pursuant to this Court’s
5 inherent authority under Code of Civil Procedure section 187 to consider record-preserving notices
6 that bear on motions under submission or pending decision.

7 8 **II. THE FILINGS COVERED BY THIS NOTICE**

9 This Notice memorializes, as a cumulative record under California Rule of Professional Conduct
10 3.3(a)(1) (no false statement of law or fact to a tribunal) and Rule 3.4(b) (fairness to opposing party
11 and counsel), the following four filings of Defendant CSAA Insurance Exchange and its counsel
12 of record at Porter Scott, A Professional Corporation:

- 13 (A) **Anti-SLAPP MPA**, filed April 9, 2026 in CGC-25-631802; the “Memorandum of Points
14 and Authorities in Support of Special Motion to Strike pursuant to CCP section 425.16,”
15 carrying the “cannot prevail / cannot demonstrate / cannot succeed” certifications cataloged
16 in plaintiff’s prior April 27, 2026 supplemental safe-harbor letter at Priority One (P1-1 to
17 P1-5);
- 18 (B) **MFL-SAC Opposition**, filed April 23, 2026; “Defendant CSAA Insurance Exchange’s Op-
19 position to Plaintiff’s Motion for Leave to File a Second Amended Complaint,” whose Intro-
20 duction page represents that “Plaintiff cites no authority to support the proposition that he can
21 file his Motion for Leave to Amend, as no such authority exists to support his motion”;
- 22 (C) **May 6, 2026 O’Connell Reply Declaration**, filed on or about May 6, 2026 in support of
23 the Special Motion to Strike, including paragraph 6 and Exhibit A introducing a quantified
24 attorney-fee theory and a redacted-summary exhibit for the first time on reply (per the dock-
25 eted reply declaration filed May 6, 2026; verify Transaction ID via clerk register-of-actions);
26 and
- 27 (D) **May 8, 2026 Second O’Connell Declaration**, filed on or about May 8, 2026 with a sub-
28 stantially duplicative title to (C), re-injecting the same matter that plaintiff that day moved to

1 strike in Transaction ID 79429443 (ROA: Transaction ID TBD; see clerk register-of-actions
2 for the May 8, 2026 second declaration).

3
4 **III. CUMULATIVE RPC 3.3(A)(1) RECORD (NO FALSE STATEMENT**
5 **OF LAW OR FACT TO A TRIBUNAL)**

6 California Rule of Professional Conduct 3.3(a)(1) provides that a lawyer shall not knowingly make
7 a false statement of law or fact to a tribunal. The duty runs **to the tribunal directly**, including at
8 the lectern in front of the judicial officer.

9 The four filings identified in Section II cumulatively memorialize the following record:

10 **(a) “No such authority exists” while JKC3H8 sits undisclosed.** The MFL-SAC Opposition
11 Introduction page represents that “Plaintiff cites no authority to support the proposition that he
12 can file his Motion for Leave to Amend, as no such authority exists to support his motion.” That
13 representation cannot survive contact with JKC3H8 et al. v. Colton et al. (2013) 221 Cal.App.4th
14 468, 164 Cal.Rptr.3d 450 (3d Dist.; Hoch, J.), a published, citable California Court of Appeal
15 decision squarely on the leave-to-amend / section 425.16 intersection. Plaintiff identified JKC3H8
16 by name and at full citation to defense counsel in the April 22, 2026 safe-harbor letter, the April 27,
17 2026 supplemental safe-harbor letter, and the May 5 to 8, 2026 safe-harbor notice. The continued
18 advocacy of the “no such authority exists” framing without disclosing JKC3H8 to this Court is an
19 act covered by Rule 3.3(a)(1).

20 **(b) “Cannot prevail” certifications offered without Park’s gravamen and Baral’s minimal-**
21 **merit threshold.** The Anti-SLAPP MPA repeatedly certifies that plaintiff “cannot establish a
22 probability of prevailing” without first applying Park v. Board of Trustees (2017) 2 Cal.5th 1057
23 at step one (gravamen analysis) or Baral v. Schnitt (2016) 1 Cal.5th 376, 396 at step two (minimal-
24 merit threshold). A “cannot prevail” certification offered to a California court while the controlling
25 step-one and step-two architecture is left out of the brief is a representation of law made in disregard
26 of the controlling state-Supreme-Court framework.

27 **(c) New fee theory on reply without prior briefing opportunity.** The May 6, 2026 O’Connell
28 Reply Declaration paragraph 6 and Exhibit A introduced, for the first time on reply, a quantified

1 attorney-fee theory under CCP section 425.16(c)(1). The moving Anti-SLAPP MPA contained
2 no quantified fee prayer, no hour-by-hour summary, and no billing records. Counsel's represen-
3 tation that the fee figure rests on contemporaneous billing records is offered without producing
4 those records and without laying a foundation under Evidence Code sections 702, 1271, and 1521.
5 (See Plaintiff's Motion to Strike May 6 Reply Declaration of Tyler J. O'Connell and Exhibit A,
6 filed May 8, 2026, Transaction ID 79429443; Plaintiff's Evidentiary Objections, also filed May 8,
7 2026.)

8 **(d) Duplicative second declaration after plaintiff's strike motion.** The May 8, 2026 Second
9 O'Connell Declaration was filed in immediate sequence after plaintiff's strike motion and contem-
10 poraneous evidentiary objections. It does not cure the foundation defects identified by plaintiff's
11 papers; it re-injects the same matter. A continuing in-court representation of the same fee theory
12 in front of the judicial officer, without curing the foundation defects, is an act covered by Rule
13 3.3(a)(1).

14 15 **IV. CUMULATIVE RPC 3.4(B) RECORD (FAIRNESS TO OPPOSING** 16 **PARTY AND COUNSEL)**

17 California Rule of Professional Conduct 3.4(b) prohibits a lawyer from suppressing evidence that
18 the lawyer or the client has a legal obligation to reveal or to produce. It also requires fairness in
19 dealing with opposing party and counsel.

20 The four filings identified in Section II cumulatively reflect:

21 **(a) Withholding of the underlying billing records.** Exhibit A to the May 6, 2026 O'Connell
22 Reply Declaration is a redacted summary. The underlying contemporaneous billing records are not
23 before the Court. A redacted summary is not a substitute for the original records under Evidence
24 Code section 1521, and a self-represented plaintiff cannot test the redaction or the summarization
25 choices without access to the original records.

26 **(b) Burden-shifting onto a self-represented plaintiff.** Plaintiff is appearing in pro per. The
27 cumulative tactic of (i) advancing "cannot prevail" labels at the moving stage, (ii) representing
28 that "no such authority exists" against a leave-to-amend motion, (iii) introducing a new quantified

1 attorney-fee theory on reply, and (iv) filing a duplicative second declaration after plaintiff's strike
2 motion places on plaintiff the disproportionate burden of opposing four overlapping, certification-
3 deficient filings before the merits are even reached. The pattern falls within the unfairness reach of
4 Rule 3.4(b).

5 **(c) Continuing-advocacy events under Musaelian.** Each later restatement of an unwithdrawn
6 certification is an independent in-court representation event for purposes of California Rule of
7 Professional Conduct 3.3 and Code of Civil Procedure section 128.7(b). (Musaelian v. Adams
8 (2009) 45 Cal.4th 512, 518 to 520.) The CCP section 128.7 paper safe harbor does not immunize
9 in-court restatements of unwithdrawn certifications.

11 **V. CROSS-REFERENCE TO PLAINTIFF'S CONCURRENTLY FILED** 12 **SANCTIONS MOTION**

13 This Notice is filed cumulatively and concurrently with **Plaintiff's Notice of Motion and Mo-**
14 **tion for Sanctions under Code of Civil Procedure section 128.7 (Anti-SLAPP Reply Declara-**
15 **tion Misconduct)** and its accompanying Memorandum, Declaration of Dylan Franciscus Rosario,
16 Request for Judicial Notice (Exhibits A through D), and Proposed Order. This Notice does not
17 duplicate that motion's prayer. The CCP section 128.7 motion seeks discretionary monetary and
18 non-monetary relief; this Notice preserves the same conduct, separately, as a cumulative Rule
19 3.3(a)(1) / Rule 3.4(b) record that the Court may take into account in any pertinent ruling on the
20 June 24, 2026 line.

21 This Notice is also referenced and incorporated by Plaintiff's **Notice of Directly Adverse Control-**
22 **ling Authority under California Rule of Professional Conduct 3.3(a)(2)** concerning JKC3H8
23 v. Colton (Tab 33 of the chambers binder), and by Plaintiff's **Notice of Supplemental Author-**
24 **ity (JKC3H8 v. Colton)** filed May 21, 2026 for the June 24, 2026 line. Plaintiff is presenting
25 the same controlling-authority framework through the same lens across multiple, separately filed
26 papers, and is asking the Court to consider that consistency in evaluating the cumulative record.

1 **VI. NO REOPENING OF BRIEFING; NO ORDER REQUESTED**

2 This Notice introduces no new argument and reopens no briefing on any motion. The argumenta-
3 tion related to the motions on the June 24, 2026 line remains as lodged in the operative oppositions
4 and bench materials designated by Plaintiff's Notice of Withdrawal and Designation of Operative
5 Oppositions (Transaction ID 79429280, filed May 8, 2026), and in the concurrently filed CCP
6 section 128.7 motion bundle.

7 **No order is requested by this notice.**

8 _____
9 **VII. SERVICE**

10 This Notice is served on Defendant's counsel of record (Mark G. Tapp, Tyler J. O'Connell, Mason
11 Schubert, and Sarah J. Blithe, Porter Scott, A Professional Corporation) by electronic mail per
12 CCP section 1010.6 and Cal. Rules of Court, rule 1.21, with a Proof of Service (POS-050) filed
13 contemporaneously.

14 _____
15 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path